TAMIL NADU VETERINARY AND ANIMAL SCIENCES UNIVERSITY

Tender No. 1064 / NADP / IAN / RO plant / 2022 **Date: 22.01.2022**

TENDER SCHEDULE

I. GENERAL

Tenderers should state in the body of their letter whether they are:

i) Manufacturers (OR)

ii) Manufacturers authorised agents (OR)

iii) Holders in stock of the stores tendered for.

II. DEVIATION FROM SPECIFICATION

The tenderers are requested to study the specification stated below.

Tender for the **Supply, installation, testing and commissioning of Reverse osmosis plant (2000 litres / hour) with accessories including electric panel:**

Name of the item	Specifications
Supply, installation, testing and commissioning of Reverse osmosis plant (2000 litres / hour) with all accessories including electrical panel **Location**: Institute of Animal Nutrition, Kattupakkam, Chengalpattu district, Tamil Nadu 603203, India.	Specification should be as per technical specification of the equipment of this tender document

NUMBER REQUIRED: **one**

SERVICE CONDITION:

Guarantee period and after sales service conditions to be mentioned.

In case of deviation or alteration the same should be brought out boldly and prominently in the offer made. However, clarifications may be sought on the tender details by the tender evaluation committee from the tenderer / bidder in writing, if required.

III. Any terms or conditions not brought out in the Body of the offer will not be considered.

IV. In case any condition or terms of contract applicable in the invitation of Tender is not acceptable to the Tendering firm they should specifically state deviation therein from the body of their Tender.

V. In the body of the letter, the tenderer should specifically state that he/she agrees for sole arbitration by the Finance Officer, Tamil Nadu Veterinary and Animal Sciences University, Chennai-51.

VI. PRICE

a) Prices must be in terms of Rupees and paise only.

b) The unit prices should be for the equipment as indicated in the schedule of tender enquiry and not for any other equipment.

c) Prices quoted should be for delivery at site, as specified in the supply order inclusive of charges such as packing and forwarding.

d) Discount if any, should be indicated prominently.

e) Prices quoted shall be firm in all respects and for each equipment.

f) Tenders with price variation basis will not be accepted.

g) The offer should be kept valid for six months from the date of award of contract and the work is expected to begin immediately after completion of building construction work for installing the Reverse osmosis plant and installation of machineries should be completed within 15 days from award of contract.

VII. The tenderer is solely responsible for the equipment till delivery and demonstration of the equipment to be conducted.

VIII. Earnest Money Security Deposit and Execution of Agreement

Each tender should be accompanied by an **Earnest Money Deposit of 1% of tender value** in the form of demand draft drawn in favour of the **Professor and Head, Institute of Animal Nutrition, Kattupakkam** failing which the tender will not be considered. Cheques will not be accepted. If for any reason the tenderer withdraws the tender before or after being selected or before being rejected by the competent authority, The Tamil Nadu Veterinary and Animal Sciences University reserves the right to forfeit the deposit in part of in full. **After opening of financial bids, if it is found that EMD amount is lesser than 1% of tendered value, the tender will not be considered.** The Earnest money deposited will be refunded to the unsuccessful tenderers. In the case of successful tenderers, the amount will be adjusted towards Security Deposit.

The successful tenderer shall also furnish a **Security Deposit of not exceeding 5% of value of tender and should sign an agreement in bond paper within 15 days from the date of intimation of the acceptance of the tender**. **The Security deposit will be inclusive of the EMD, already remitted.**

The Security Deposit will be refundable only after the expiry of a period of ONE YEAR from the date of handing over the stores in working conditions / completion of the work to the full

satisfaction and upon the Tamil Nadu Veterinary and Animal Sciences University issuing a Certificate that no amount is due from the contractor under the agreement and that the contractor executed an agreement on a non-judicial stamp paper of the value to be fixed incorporating the terms and conditions of the contract within one month from the date of intimation of the acceptance of the tender. In case of default of these conditions i.e. remitting security deposit and executing agreement within the time allowed, the earnest money deposit will be forfeited without prejudice to any other right of the University service. The University will also be entitled to make other arrangement for obtaining these items from others and recover from the contractor any excess expenditure or cost incurred by the University over the contract price together with all charges, expenses and damages attending to such purchase, provided the Finance Officer, Tamil Nadu Veterinary and Animal Sciences University in specific application from the contractor grant extension of time in specific circumstances in the matter of payment of security deposit and execution of agreement.

IX. DELIVERY

The supplies shall be subject to inspection and acceptance or rejection by the Finance Officer, Tamil Nadu Veterinary and Animal Sciences University or such other person as Finance Officer, Tamil Nadu Veterinary and Animal Sciences University shall from time to time name and appoint for the purpose, the said person to be named and appointed being hereinafter referred to as the Inspection Officer.

The supplies made by the tenderer which in the opinion of the Finance Officer, Tamil Nadu Veterinary and Animal Sciences University or the Inspecting Officer in bad order, unsound in quality or description or not in accordance with specifications as have been prescribed in that behalf or otherwise faulty or unfit for use, shall be rejected.

The supplies so rejected shall be removed by and that the expenses of tenderer within 15 days after he has been given notice of the rejection. If not taken away, the Finance Officer, Tamil Nadu Veterinary and Animal Sciences University may cause the goods to be removed and disposed off in the manner he may deem fit and recover from the tenderer the expenses incurred in such removal and disposal.

The substitution of supplies which have been rejected by the Finance Officer, Tamil Nadu Veterinary and Animal Sciences University or the inspecting Officer in whole or in part under the provisions herein before contained the tenderer shall and will within the time permitted by the Finance Officer, Tamil Nadu Veterinary and Animal Sciences University or the inspection Officer after such rejection shall have been notified to him as aforesaid supply and delivery without causing any extra cost of expenditure. If not so supplied and delivered by the tenderer or substitution, as aforesaid and also in case of failure by the tenderer to supply and deliver supplies demanded from him under this tender within the period prescribed for supply and delivery, The Finance Officer, Tamil Nadu Veterinary and Animal Sciences University or the Inspecting Officer

shall have the power to purchase from others in lieu of rejected or not delivered goods and any excess expenditure or cost incurred by the University over and above the tenderer's price together with all charges and expenses attending to the purchase shall be recoverable from the tenderer. Nothing herein contained shall prejudice any other right of the University on that behalf under the tenderer or otherwise.

X. A guarantee towards the supply of spare parts if any when required on the agreed basis for on agreed price.

XI. THE TENDERER SHALL FURNISH THE FOLLOWING GUARANTEE

A guarantee to the effect that articles supplied shall be of the best quality and workmanship and shall be in with such quantities and such price. A guarantee for the period of one year or more from the date of handing over the equipments for the proper functioning of the equipment and systems and any defects in their proper function during the guarantee period should be rectified by the tenderer free of charge. If during the guarantee period, the supplies are found not to the description and quality offered, the University will be entitled to reject the articles and the supplier shall replace or pay the University such damages as may arise including the replacement of cost and towards delay and damages, Nothing herein contained shall prejudice any other right of the University in that behalf under the tender or otherwise.

XII. TRANSFER OF SUPPLY

The tenderer shall not transfer or assign the supply or any part there or any interest therein directly or indirectly to any person or persons whomsoever without the written consent of the University.

XIII. If the supply order is placed on a higher tenderer as a result of the inability of the tenderer then he will be liable to pay the University the difference between the supply rate and that the lowest acceptable tender. This is in addition to and without prejudice to other rights under the terms of the tender.

XIV. INSTALLATION AND TESTING

All deliveries of goods should be accompanied by Invoice/bills in triplicate to the Officer at site to whom the goods are supplied.

a) The time allowed for completion of supply and delivery as prescribed including demonstration under the conditions of the tender is the essence of the tender.

b) Without prejudice to other rights under the terms of this tender or otherwise.

i) If the tenderer fails in the due performance of his supply within the time fixed in the supply order or any extension thereof, the tenderer is liable to pay as liquidated damages upto 2% per month of the supply value of such portion of the materials as have not been delivered, installed and commissioned and having been delivered, installed and commissioned cannot in consequence of the delay be used efficiently during each month

between the appointed or extended time as the case may be and the actual time of delivery installation.

The tenderer is not entitled for any enhancement of the rates once accepted. It shall be lawful for the purchaser to set off any loss or expense or cost of damages sustained or incurred by the purchaser by reason of the cancellation of the tender form and out of nominees for the time being payable or due to the tenderer from the University otherwise apart from forfeiting the security deposit furnished by the tenderer.

ii) All sums found due to the University under or by virtue of these presents shall be recoverable from the tenderer in any manner as the University may deem fit.

XV. Any notice or communication to the tenderer shall be deemed to be sufficiently served if given or left in writing at his usual or last known place of abode.

XVI. All questions disputes or differences arising under out of or in connection with the supply, if not concluded shall be subject to the exclusive jurisdiction of the place from which the acceptance of the tender is issued, is situated.